

DEPARTMENT OF VETERANS AFFAIRS

**Justification and Approval (J&A)
For
Other Than Full and Open Competition (>SAT)**

Acquisition Plan Action ID: 36C262-25-AP-4296 (SAVAHCS)
36C262-25-AP-3880 (NAVAHCS)
36C262-25-AP-0044 (PVAHCS)

1. **Contracting Activity:** Department of Veterans Affairs, VISN 22:
 - Southern Arizona VA Healthcare System, 3601 S. 6th Avenue Tucson, AZ 85723
 - Northern Arizona VA Healthcare System, 500 Hwy 89N, Prescott, AZ 85313
 - Phoenix VA Healthcare System, 650 E. Indian School Road, Phoenix, AZ 86012Network Contracting Office (NCO) 22, 3601 S. 6th Avenue Tucson, AZ 85723
PR: 678-25-3-139-0033 (SAVAHCS)
PR: 649-25-3-3376-0084 (NAVAHCS)
PR: 644-25-3-461-0044 (PVAHCS)
2. **Nature and/or Description of the Action Being Processed:** A three-month sole-source, Indefinite Delivery, Indefinite Quantity contract with three one-month options, providing beneficiaries assigned to VA Medical Centers (VAMCs) mentioned in paragraph 1, pre-arranged Fixed-Wing Air Ambulance Services twenty-four (24) hours per day, seven (7) days per week, including all holidays.
3. **Description of Supplies/Services Required to Meet the Agency's Needs:** Arizona VAMCs Fixed-Wing Air Ambulance Services is required from April 1, 2025 to September 30, 2025. Service includes pre-arranged BLS, ALS, and CCT air transport of patients requiring continuous ECG monitoring or a physician designates a patient as a critical care transport. Only a physician or registered nurse with current critical care training and advanced cardiac life support training will be designated as the medical flight attendant, in accordance with the standards of the Commission on Accreditation of Medical Transport System (CAMTS), the National Accreditation Alliance Medical Transport Applications (NAAMTA Global), or European Aero Medical Institute (EURAMI). Vendors must also meet all Arizona Department of Health Service licensing and registration requirements and be a "Covered Entity" as defined by Medicare.

Period	Estimated Price	Quantity	VAMC
04/01/2025 to 09/30/2025	\$196,000.00	6-Months	SAVAHCS
04/01/2025 to 09/30/2025	\$196,000.00	6-Months	PVAHCS
04/01/2025 to 09/30/2025	\$155,000.00	6-Months	NAVAHCS

4. **Statutory Authority Permitting Other than Full and Open Competition:**

- ☐ (1) Only One Responsible Source and No Other Supplies or Services Will Satisfy Agency Requirements per 41 USC §3304(a)(1) as implemented by FAR 6.302-1;
- ☒ (2) Unusual and Compelling Urgency per 41 USC §3304(a)(2) as implemented by FAR 6.302-2;
- ☐ (3) Industrial Mobilization, Engineering, Developmental or Research Capability or Expert Services per 41 USC §3304(a)(3) as implemented by FAR 6.302-3;
- ☐ (4) International Agreement per 41 USC §3304(a)(4) as implemented by FAR 6.302-4
- ☐ (5) Authorized or Required by Statute per 41 USC §3304(a)(5) as implemented by FAR 6.302-5;
- ☐ (6) National Security per 41 USC §3304(a)(6) as implemented by FAR 6.302-6;
- ☐ (7) Public Interest per 41 USC §3304(a)(7) as implemented by FAR 6.302-7;

5. **Demonstration that the Contractor's Unique Qualifications or Nature of the Acquisition Requires the Use of the Authority Cited Above (applicability of authority):**

On March 10, 2025, Contracting was informed that VHA's new nationwide Fixed-Wing, Air Ambulance contract would not be awarded on-time. Contracting was asked to extend the current contract 90 days to allow time for a new contract to be awarded. Contracting was unable to accommodate, since all options have been exhausted extending the contract to March 31, 2025. Without Fixed-Wing, Air Ambulance capabilities, the government would be seriously injured by not being able to provide life-saving services for Veterans in need of organ transplants as organs become available for transplant recipients across the country.

6. **Description of Efforts Made to ensure that offers are solicited from as many potential sources as deemed practicable:**

Market research was conducted on March 11, 2025 using the Dynamic Small Business Search (DSBS) application on SBA.gov. Searching under NAICS Code 621910, Ambulance Services, 196 profiles were identified nationwide. Two certified Service Disabled Veteran Own Businesses (SDVOSB) were found qualified in providing fixed-wing, air ambulance services, the current contract's incumbent, Air EMS, Inc. and BEVO Aviation, LLC. CS contacted BEVO Aviation via email for a quote request on March 19, 2025 with a suspense of March 20, 2025. No response was received. Contracting Specialist (CS) also reviewed all 16 Air Charter Services listed in GSA. Of the 16, five listed air ambulance capabilities. Of the five, two are small businesses, one located in Maryland and the other in Florida. CS then reached out to Global Medical Response (GMR), a large business for a quote on March 21, 2025 with a suspense of March 24, 2025. No response was received.

7. **Determination by the CO that the Anticipated Cost to the Government will be Fair and Reasonable:**

When the agency's need for the supplies or services is of such an unusual and compelling urgency that the Government would be seriously injured, unless the agency is permitted to limit the number of sources from which it solicits bids or proposals, full and open competition need not be provided for.

8. **Description of the Market Research Conducted and the Results, or a Statement of the Reasons Market Research Was Not Conducted:** Market research was conducted on March 11, 2025 using the Dynamic Small Business Search (DSBS) application on SBA.gov. Searching under NAICS Code 621910, Ambulance Services, 196 profiles were identified nationwide. Two certified Service Disabled Veteran Own Businesses (SDVOSB) were found that could provide fixed-wing, air ambulance services, the current contract's incumbent, Air EMS, Inc. and BEVO Aviation, LLC. CS contacted BEVO Aviation via email for a quote request on March 19, 2025 with a suspense of March 20, 2025. No response was received. Contracting Specialist (CS) also reviewed all 16 Air Charter Services listed on GSA, which five listed air ambulance capabilities. Of the five, two are small businesses located in Maryland and Florida. CS then contacted Global Medical Response (GMR) on March 21, 2025 for a quote request and provided a suspense of March 24, 2025 to respond. No response was received.
9. **Any Other Facts Supporting the Use of Other than Full and Open Competition:** The Veterans Health Administration has deemed Fixed-Wing Air Ambulance Services essential to transport critically impaired beneficiaries in need of life saving care. Any gaps or delays in service can result in Veteran deaths, or public perceptions that the government is not fulfilling their obligations to patient care.
10. **Listing of Sources that Expressed, in Writing, an Interest in the Acquisition:**
Air EMS, Inc.
7601 E. Apache Street, Hanger 22
Tulsa, Oklahoma 74115
UEI: NY3FJTH4JUN8
11. **A Statement of the Actions, if any, the Agency May Take to Remove or Overcome any Barriers to Competition before Making subsequent acquisitions for the supplies or services required:** The agency will continue conducting market research for Fixed-Wing Air Ambulance Services during the initial three-month base and during each one-month option period, providing the time for VHA Procurement and Logistics Transportation office to properly conduct a full and open competition for a new base plus four (4) year contract.
12. **Requirements Certification:** I certify that the requirement outlined in this justification is a Bona Fide Need of the Department of Veterans Affairs and that the supporting data under my cognizance, which are included in the justification, are accurate and complete to the best of my knowledge and belief.

Howard Martin
Medical Administration Officer
Southern Arizona VA Healthcare System

Date

13. **Approvals in accordance with the [VHAPM Part 806.3 OFOC SOP](#):**

- a. **Contracting Officer Certification (required)**: I certify that the foregoing justification is accurate and complete to the best of my knowledge and belief.

Norman Napper-Rogers
Contracting Officer
Network Contracting Office (NCO) 22

Date

- b. **One Level Above the Contracting Officer (Required over SAT but not exceeding \$750K)**: I certify the justification meets requirements for other than full and open competition.

Mayte Diaz
Service Branch 1 Chief/Contracting Officer
Network Contracting Office (NCO) 22

Date